

The Preamble

1. The Preamble to the Constitution states the object which the Constitution seeks to establish and promote, and also aids the legal interpretation of the Constitution where the language is found ambiguous.
2. The ideals embodied in the Objectives Resolution is faithfully reflected in the Preamble to the Constitution, which, as amended in 1976, summaries the aims and objects of the Constitution.
3. Text of the Preamble : "We, the People of India having solemnly resolved to constitute India into a Sovereign Socialist Secular Democratic Republic and to secure to all citizens justice, social, economic and political; Liberty of thought, expression, belief, faith and worship Equality of status and of opportunity; and to promote among them all Fraternity assuring the dignity of the individual and the unity and integrity of the Nation in our Constituent Assembly on this twenty sixth day of November, 1949, do hereby adopt, enact and give to ourselves this constitution."
4. The Preamble specifies the source of authority, i.e. people of India, the system of Government, the objectives to be attained by the political system and the date of adoption and enactment of the Constitution.
5. Though, the Preamble is not enforceable in a court of law, it provides a key to the understanding and interpretation of the Constitution.
6. In case of doubt, the Supreme Court has referred to the Preamble to elucidate vague aspects of the Constitution.
7. In the Berubari case, the Supreme Court held that the Preamble was not part of the Constitution, but later, in the Keshavananda Bharti case, it declared that it was part of the Constitution.